

Terms of Use

Last Updated: November 7, 2025

1. ACCEPTANCE OF TERMS

Welcome to SabiWay! These Terms of Use (the "Terms," "Agreement," or "Terms of Use") constitute a legally binding agreement between you and SabiWay LTD ("SabiWay," "we," "us," or "our") governing your access to and use of the SabiWay website located at [www.sabiway.com], our mobile applications available on iOS and Android platforms, and all associated services (collectively, the "Platform" or "Services").

By accessing, browsing, or using the Platform in any way, including but not limited to registering for an account, posting content, or engaging with Service Professionals or Customers, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy, which is incorporated herein by reference.

IF YOU DO NOT AGREE TO THESE TERMS, YOU MAY NOT ACCESS OR USE THE PLATFORM.

2. DEFINITIONS

For purposes of these Terms:

"Customer" means a user who registers on the Platform to request, book, or receive services from Service Professionals.

"Service Professional" or "Professional" means an individual or business entity that has been verified and approved by SabiWay to offer services to Customers through the Platform. Service categories include but are not limited to barbers, cleaners, electricians, plumbers, painters, and handymen.

"User" means any person who accesses or uses the Platform, including Customers, Service Professionals, and Visitors.

"Visitor" means a person who visits the Platform but does not register for an account or book services.

"Content" means any text, images, photos, videos, audio, data, information, or other materials posted, uploaded, or transmitted on or through the Platform.

"Services" means the platform services provided by SabiWay that enable Customers to connect with and book Service Professionals for various service categories.

"Booking" means a confirmed arrangement between a Customer and a Service Professional for the provision of services.

3. ELIGIBILITY AND ACCOUNT REGISTRATION

3.1 Age Requirements

You must be at least 18 years of age or the age of majority in your jurisdiction, whichever is greater, to use the Platform. By

using the Platform, you represent and warrant that you meet this age requirement.

3.2 Account Registration

To access certain features of the Platform, you must register for an account. When registering, you agree to:

- Provide accurate, current, and complete information about yourself
- Maintain and promptly update your account information to keep it accurate and complete
- Maintain the security and confidentiality of your account credentials
- Immediately notify SabiWay of any unauthorized use of your account or any other breach of security
- Accept all responsibility for any activities that occur under your account

3.3 Account Types

Customer Accounts: Customers must provide their name, email address, phone number, physical address, and payment information to create an account and book services.

Service Professional Accounts: Service Professionals must complete a more extensive registration process, including:

- Personal and business information (name, company name, address, contact details)

- Service categories and areas covered
- Professional licenses and certifications (where applicable)
- Background check authorization and completion
- Identity verification documents
- Tax information (tax ID, VAT number, or social insurance number)
- Bank account information for payment processing
- Business profile and portfolio (optional)

3.4 Account Suspension and Termination

SabiWay reserves the right to suspend or terminate your account at any time, with or without notice, for any reason, including but not limited to:

- Violation of these Terms
- Fraudulent, abusive, or illegal activity
- Providing false or misleading information
- Failure to pay fees owed
- Complaints from other Users
- Inactivity for an extended period

You may terminate your account at any time by contacting us at info@sabiway.com or through your Account Settings. Upon termination, your right to use the Platform will immediately cease.

4. DESCRIPTION OF SERVICES

4.1 Platform Overview

SabiWay is a people-based service platform that connects Customers with verified local Service Professionals across multiple categories. We provide the technology platform and tools that enable Users to:

- Search for and discover Service Professionals
- Request quotes and communicate with Service Professionals
- Book and schedule services
- Process payments securely
- Leave reviews and ratings
- Manage bookings and service history

4.2 SabiWay's Role

IMPORTANT: SabiWay is a technology platform that facilitates connections between Customers and independent Service Professionals. SabiWay does NOT:

- Employ Service Professionals
- Provide the actual services (plumbing, electrical work, cleaning, etc.)
- Supervise, direct, or control Service Professionals in the performance of their services
- Guarantee the quality, safety, or legality of services provided by Service Professionals
- Act as an agent for Customers or Service Professionals

Service Professionals are independent contractors who use the Platform to offer their services directly to Customers. The contractual relationship for services is between the Customer and the Service Professional, not with SabiWay.

4.3 No Endorsement

SabiWay does not endorse any Service Professional, Customer, or service. While we conduct background checks and verification processes, these do not constitute a guarantee of quality, safety, or reliability. Users are responsible for exercising their own judgment when selecting Service Professionals or accepting service requests.

4.4 Availability

We strive to maintain continuous availability of the Platform, but we do not guarantee uninterrupted or error-free operation. The Platform may be temporarily unavailable due to maintenance, updates, technical issues, or circumstances beyond our control.

5. SERVICE PROFESSIONAL TERMS

5.1 Independent Contractor Status

Service Professionals are independent contractors and not employees, agents, partners, or joint venturers of SabiWay. Service Professionals:

- Control the manner and means of performing services

- Set their own schedules and availability
- Determine which service requests to accept or decline
- Are responsible for their own taxes, insurance, licenses, and permits
- Are not entitled to employee benefits from SabiWay

5.2 Background Checks and Verification

All Service Professionals must undergo and pass background checks as required by applicable law. By registering as a Service Professional, you:

- Authorize SabiWay to conduct criminal background checks, identity verification, and other screening processes
- Consent to the collection and processing of information necessary for such checks
- Represent and warrant that all information provided is accurate and complete
- Acknowledge that you may be disqualified from the Platform based on background check results

Background checks may include but are not limited to:

- Criminal record checks
- Identity verification
- License and certification verification
- Reference checks
- Credit checks (where applicable)

SabiWay reserves the right to re-run background checks periodically or when there is reason to believe information may have changed.

5.3 Professional Requirements

Service Professionals must:

- Possess all necessary licenses, permits, certifications, and insurance required by applicable law for the services they offer
- Maintain valid licenses and certifications throughout their use of the Platform
- Comply with all applicable laws, regulations, and industry standards
- Provide services in a professional, safe, and workmanlike manner
- Use their own tools, equipment, and supplies unless otherwise agreed with the Customer
- Maintain adequate liability insurance and, where applicable, workers' compensation insurance

5.4 Service Professional Obligations

Service Professionals agree to:

- Respond promptly to Customer inquiries and booking requests

- Honor confirmed Bookings and arrive on time
- Provide accurate quotes and pricing information
- Communicate clearly with Customers about service scope, timeline, and any issues
- Complete services to a reasonable standard of quality
- Respect Customer property and privacy
- Follow safety protocols and industry best practices
- Maintain a professional demeanor at all times

5.5 Prohibited Service Professional Conduct

Service Professionals may NOT:

- Accept payment outside the Platform for services booked through SabiWay
- Solicit Customers to book services outside the Platform
- Misrepresent their qualifications, experience, or credentials
- Subcontract services to unverified third parties without Customer consent
- Discriminate against Customers based on protected characteristics
- Engage in harassment, intimidation, or inappropriate behavior
- Provide services while under the influence of drugs or alcohol
- Take or use Customer property without permission

- Share Customer personal information with third parties

5.6 Service Professional Profile

Your Service Professional profile will be publicly visible and may include:

- Business name and description
- Service categories offered
- Service area and availability
- Profile photo and portfolio images
- Pricing information
- Ratings and reviews from Customers
- Verification badges (e.g., "Background Check Verified," "License Verified")
- Years of experience
- Completed job count

You are responsible for keeping your profile information accurate, current, and professional.

6. CUSTOMER TERMS

6.1 Booking Services

When you book a service through the Platform, you agree to:

- Provide accurate information about the service needed
- Be available at the agreed time and location
- Provide access to the work area as needed
- Pay the agreed price for services rendered

- Treat Service Professionals with respect and professionalism
- Follow any reasonable instructions or safety guidelines provided by the Service Professional

6.2 Customer Obligations

Customers agree to:

- Provide a safe working environment for Service Professionals
- Disclose any known hazards or special conditions that may affect the service
- Be present or arrange for a representative to be present during the service
- Inspect completed work promptly and communicate any concerns
- Pay for services through the Platform unless otherwise agreed in writing
- Not engage in discriminatory, harassing, or inappropriate behavior

6.3 Cancellations and Rescheduling

Customers may cancel or reschedule Bookings subject to the following:

Cancellation Policy:

- Cancellations made more than 24 hours before the scheduled service: No fee
- Cancellations made less than 24 hours before the scheduled service: May incur a cancellation fee of up to 50% of the estimated service cost
- Cancellations made less than 2 hours before or no-shows: May incur a cancellation fee of up to 100% of the estimated service cost

Service Professionals may also cancel Bookings due to emergencies, unforeseen circumstances, or safety concerns. If a Service Professional cancels, you will not be charged.

6.4 Customer Prohibited Conduct

Customers may NOT:

- Use the Platform to book services with intent to harm, defraud, or harass Service Professionals
- Request services that are illegal or violate these Terms
- Refuse payment for services properly rendered
- Provide false or misleading information in service requests
- Attempt to circumvent Platform payment systems
- Solicit Service Professionals to provide services outside the Platform
- Discriminate against Service Professionals based on protected characteristics

- Record or photograph Service Professionals without consent

7. PAYMENTS AND FEES

7.1 Payment Processing

All payments for services booked through the Platform must be processed through SabiWay's secure payment system. We use third-party payment processors that comply with PCI-DSS standards. By using the Platform, you authorize SabiWay to charge your designated payment method for:

- Service fees charged by Service Professionals
- SabiWay platform fees
- Cancellation fees (if applicable)
- Any other fees disclosed at the time of booking

7.2 Pricing and Quotes

Service Professionals set their own pricing for services. Prices may be displayed as:

- Hourly rates
- Flat fees for specific services
- Custom quotes based on Customer requirements

Quotes are estimates and may change based on the actual scope of work. Service Professionals should communicate any

price changes to Customers before proceeding with additional work.

7.3 SabiWay Platform Fees

Customer Fees: Customers may be charged a service fee or booking fee for using the Platform. This fee will be clearly disclosed before you confirm a Booking.

Service Professional Fees: Service Professionals are charged a commission or service fee on each completed Booking. The fee structure will be communicated during registration and may be adjusted with notice.

All fees are non-refundable except as explicitly stated in these Terms or required by law.

7.4 Payment Terms

For Customers:

- Payment is due at the time of booking or upon service completion, depending on the service type
- Your payment method will be charged automatically after service completion
- You are responsible for all charges incurred under your account
- Payment includes the service cost, applicable taxes, and platform fees

For Service Professionals:

- You will receive payment for completed services minus SabiWay's commission
- Payments are processed and disbursed according to SabiWay's payment schedule (typically within 3-7 business days after service completion)
- You are responsible for reporting and paying all applicable taxes on your earnings
- SabiWay may withhold payment if there is a dispute, suspected fraud, or violation of these Terms

7.5 Disputes and Refunds

If you have a dispute regarding payment or service quality:

Step 1: Attempt to resolve the issue directly with the other party through the Platform's messaging system.

Step 2: If unresolved, contact SabiWay customer support at info@sabiway.com within 7 days of service completion.

Step 3: SabiWay will investigate and may, at its sole discretion:

- Facilitate communication between parties
- Issue a partial or full refund to the Customer
- Withhold payment to the Service Professional
- Take no action if the dispute is determined to be without merit

Refund Policy:

- Refunds are issued at SabiWay's sole discretion
- Refunds may be full or partial depending on the circumstances
- Refunds are typically processed within 7-10 business days
- Platform fees are generally non-refundable

7.6 Taxes

You are responsible for all taxes associated with your use of the Platform:

Customers: Applicable sales tax, VAT, or other consumption taxes may be added to your invoice.

Service Professionals: You are solely responsible for determining, collecting, reporting, and remitting all applicable taxes on your earnings. SabiWay may provide tax documentation (e.g., 1099 forms in applicable jurisdictions) but does not provide tax advice.

8. USER CONTENT AND CONDUCT

8.1 User Content

Users may post, upload, or transmit Content on the Platform, including:

- Profile information and photos
- Service requests and quotes
- Messages and communications
- Reviews and ratings

- Portfolio images and work samples

By posting Content on the Platform, you represent and warrant that:

- You own or have the necessary rights to use and authorize SabiWay to use the Content
- Your Content does not violate any third-party rights (including intellectual property, privacy, or publicity rights)
- Your Content complies with these Terms and applicable laws
- Your Content is accurate and not misleading

8.2 License to User Content

By posting Content on the Platform, you grant SabiWay a worldwide, non-exclusive, royalty-free, transferable, sublicensable license to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, and display such Content in connection with operating and improving the Platform and promoting SabiWay's services.

This license continues even if you stop using the Platform, but you may request removal of your Content by contacting us at info@sabiway.com.

8.3 Content Restrictions

You may NOT post Content that:

- Is illegal, fraudulent, defamatory, obscene, pornographic, or offensive
- Infringes intellectual property rights or other proprietary rights
- Contains viruses, malware, or other harmful code
- Violates anyone's privacy or publicity rights
- Harasses, threatens, or discriminates against others
- Impersonates another person or entity
- Contains false or misleading information
- Advertises or promotes competing services
- Includes personal contact information (phone numbers, email addresses, physical addresses) intended to circumvent the Platform

8.4 Community Guidelines

All Users must:

- Treat others with respect and professionalism
- Communicate clearly and honestly
- Respond promptly to inquiries and messages
- Honor commitments and agreements
- Report suspicious or inappropriate behavior
- Comply with all applicable laws and regulations
- Respect intellectual property rights
- Maintain confidentiality of private information shared through the Platform

8.5 Prohibited Conduct

In addition to Content restrictions, you may NOT:

- Use the Platform for any illegal purpose
- Attempt to circumvent security measures or access restrictions
- Scrape, data mine, or use automated tools to collect information from the Platform
- Interfere with or disrupt the Platform's operation
- Create multiple accounts to manipulate reviews or ratings
- Engage in fraudulent activity or money laundering
- Attempt to bypass SabiWay's payment system
- Solicit business outside the Platform from Users you met through the Platform
- Use another User's account without permission
- Reverse engineer, decompile, or disassemble any aspect of the Platform
- Remove or modify any copyright, trademark, or proprietary notices

8.6 Consequences of Violations

Violation of these Terms may result in:

- Content removal
- Account suspension or termination
- Withholding of payments
- Legal action

- Reporting to law enforcement authorities

9. REVIEWS AND RATINGS

9.1 Review System

SabiWay provides a review and rating system to help Users make informed decisions. After a service is completed, Customers may leave a review and rating for the Service Professional.

9.2 Review Guidelines

Reviews must:

- Be based on your actual experience with the Service Professional
- Be honest, fair, and constructive
- Focus on the service quality and professionalism
- Comply with all Content restrictions in Section 8.3

Reviews must NOT:

- Contain personal attacks, profanity, or discriminatory language
- Include personal information about the Service Professional
- Be submitted in exchange for compensation or incentives
- Be posted by anyone other than the Customer who received the service

- Contain threats, blackmail, or extortion

9.3 Service Professional Responses

Service Professionals may respond to reviews to provide context, address concerns, or thank Customers. Responses must be professional and comply with these Terms.

9.4 Review Moderation

SabiWay reserves the right to:

- Remove reviews that violate these Terms
- Investigate reports of fake, fraudulent, or manipulated reviews
- Suspend or terminate accounts that abuse the review system
- Request additional information to verify reviews

9.5 Review Disputes

If you believe a review is false, misleading, or violates these Terms, you may report it to info@sabiway.com. SabiWay will investigate and take appropriate action, which may include:

- Removing the review
- Requesting additional information from the reviewer
- Taking no action if the review is determined to be legitimate

Important: SabiWay does not arbitrate disputes about service quality or personal opinions expressed in reviews. We only remove reviews that clearly violate our Terms.

9.6 Editing and Deleting Reviews

Customers may edit or delete their reviews within 30 days of posting. After 30 days, reviews become permanent and cannot be edited or deleted except by SabiWay in accordance with these Terms.

10. INTELLECTUAL PROPERTY

10.1 SabiWay's Intellectual Property

The Platform and all content, features, and functionality (including but not limited to design, text, graphics, logos, icons, images, audio clips, video clips, software, and source code) are owned by SabiWay or its licensors and are protected by copyright, trademark, patent, trade secret, and other intellectual property laws.

You may not:

- Copy, modify, distribute, sell, or lease any part of the Platform

- Reverse engineer or attempt to extract source code from the Platform
- Use SabiWay's trademarks, logos, or branding without written permission
- Create derivative works based on the Platform
- Frame or mirror any part of the Platform on another website

10.2 Limited License

Subject to your compliance with these Terms, SabiWay grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the Platform for its intended purpose.

This license does not include:

- Any resale or commercial use of the Platform
- The collection or use of product listings, descriptions, or prices
- Any derivative use of the Platform or its contents
- Any downloading or copying of account information for the benefit of another merchant
- Any use of data mining, robots, or similar data gathering and extraction tools

10.3 Trademark Policy

"SabiWay" and related logos, graphics, and service names are trademarks of SabiWay LTD. You may not use our trademarks without our prior written consent.

10.4 Copyright Infringement

SabiWay respects the intellectual property rights of others and expects Users to do the same. If you believe that your copyrighted work has been copied in a way that constitutes copyright infringement on the Platform, please provide our copyright agent with the following information:

- An electronic or physical signature of the person authorized to act on behalf of the copyright owner
- A description of the copyrighted work that you claim has been infringed
- A description of where the allegedly infringing material is located on the Platform
- Your contact information (address, telephone number, and email address)
- A statement that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law
- A statement by you, made under penalty of perjury, that the above information is accurate and that you are the copyright owner or authorized to act on the copyright owner's behalf

Send copyright infringement notices to:

Email: info@sabiway.com

Subject Line: DMCA Takedown Request

10.5 Counter-Notification

If you believe that Content you posted was removed in error, you may submit a counter-notification containing:

- Your physical or electronic signature
- Identification of the Content that was removed and its location before removal
- A statement under penalty of perjury that you have a good faith belief that the Content was removed by mistake or misidentification
- Your name, address, telephone number, and email address
- A statement that you consent to the jurisdiction of the Federal District Court for the judicial district in which your address is located (or the appropriate court in Nigeria if your address is outside Nigeria), and that you will accept service of process from the person who provided the original infringement notification.

11. DISCLAIMERS AND LIMITATIONS OF LIABILITY

11.1 No Warranties

THE PLATFORM AND ALL SERVICES PROVIDED THROUGH THE PLATFORM ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, SABIWAY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO:

IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT

WARRANTIES REGARDING THE ACCURACY, RELIABILITY, OR AVAILABILITY OF THE PLATFORM

WARRANTIES THAT THE PLATFORM WILL BE UNINTERRUPTED, SECURE, OR ERROR-FREE

WARRANTIES REGARDING THE QUALITY, SAFETY, OR LEGALITY OF SERVICES PROVIDED BY SERVICE PROFESSIONALS

WARRANTIES THAT SERVICE PROFESSIONALS HAVE PROPER LICENSES, INSURANCE, OR QUALIFICATIONS

WARRANTIES REGARDING THE CONDUCT OF USERS

SabiWay does not warrant that:

- The Platform will meet your requirements
- The Platform will be available at any particular time or location

- Any defects or errors will be corrected
- The Platform is free of viruses or other harmful components
- Results obtained from using the Platform will be accurate or reliable

11.2 Service Professional Disclaimer

SABIWAY IS NOT RESPONSIBLE FOR THE CONDUCT, ACTIONS, OR OMISSIONS OF SERVICE PROFESSIONALS. SERVICE PROFESSIONALS ARE INDEPENDENT CONTRACTORS, NOT EMPLOYEES OR AGENTS OF SABIWAY.

SabiWay does not:

- Employ or supervise Service Professionals
- Control how Service Professionals perform their services
- Guarantee the quality, safety, timeliness, or legality of services provided by Service Professionals
- Verify that Service Professionals have adequate insurance or bonding
- Train Service Professionals or establish service standards (beyond requiring compliance with applicable laws)
- Conduct ongoing supervision or monitoring of Service Professionals' work

While SabiWay conducts background checks and verification processes, these do not constitute:

- A guarantee of competence, safety, or reliability
- A comprehensive investigation of Service Professionals' history
- An endorsement or recommendation of any Service Professional
- A warranty that Service Professionals will perform services satisfactorily

11.3 Third-Party Services

The Platform may contain links to third-party websites, applications, or services. SabiWay is not responsible for:

- The availability, content, or practices of third-party websites or services
- Any damages or losses caused by your use of third-party services
- The privacy practices of third parties

Your use of third-party services is at your own risk and subject to their terms and conditions.

11.4 Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL SABIWAY, ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, AFFILIATES, OR LICENSORS BE LIABLE FOR:

A. INDIRECT DAMAGES: Any indirect, incidental, special, consequential, or punitive damages, including but not limited to:

- Loss of profits, revenue, or business opportunities
- Loss of data or goodwill
- Cost of substitute services
- Personal or property damage
- Emotional distress

B. DIRECT DAMAGES EXCEEDING: An amount equal to the greater of (i) the fees paid by you to SabiWay in the 12 months preceding the event giving rise to the liability, or (ii) NGN 150,000 (or USD \$100 equivalent).

This limitation applies regardless of:

- The legal theory on which the claim is based (contract, tort, negligence, strict liability, or otherwise)
- Whether SabiWay was advised of the possibility of such damages
- Whether the limited remedies provided herein fail of their essential purpose

11.5 Specific Situations Where SabiWay Is Not Liable

SabiWay is not liable for:

Service-Related Issues:

- Quality, safety, or legality of services provided by Service Professionals
- Failure of Service Professionals to appear, arrive on time, or complete services
- Property damage or personal injury caused by Service Professionals
- Disputes between Customers and Service Professionals
- Services that do not meet your expectations

Platform Issues:

- Technical failures, interruptions, or errors
- Unauthorized access to your account or data
- Loss of data or content
- Compatibility issues with your devices or software

User Actions:

- Content posted by Users
- Conduct or actions of Users
- Transactions or agreements made outside the Platform
- Failure to read or understand these Terms

External Factors:

- Acts of God, natural disasters, or force majeure events
- Actions of third parties, including hackers or fraudsters
- Changes in laws or regulations

- Issues with third-party payment processors or service providers

11.6 Exceptions

Some jurisdictions do not allow the exclusion of certain warranties or the limitation or exclusion of liability for certain types of damages. Therefore, some of the limitations above may not apply to you. In such jurisdictions, our liability will be limited to the greatest extent permitted by law.

12. INDEMNIFICATION

12.1 Your Indemnification Obligations

You agree to indemnify, defend, and hold harmless SabiWay, its parent company, subsidiaries, affiliates, officers, directors, employees, agents, partners, and licensors (collectively, the "SabiWay Parties") from and against any and all claims, liabilities, damages, losses, costs, expenses, or fees (including reasonable attorneys' fees and court costs) arising from or relating to:

A. Your Use of the Platform:

- Your violation of these Terms
- Your violation of any rights of another party, including other Users
- Your violation of any applicable law, regulation, or ordinance

- Your Content or any content you post, upload, or transmit through the Platform

B. Services Provided or Received:

- **For Service Professionals:** Services you provide to Customers, including any claims of negligence, property damage, personal injury, or breach of contract
- **For Customers:** Your interactions with Service Professionals, including any false claims or unwarranted disputes
- Any tax liability arising from your use of the Platform

C. Your Conduct:

- Fraudulent, abusive, or illegal activity
- Infringement of intellectual property rights
- Violation of privacy rights or data protection laws
- Harassment or discrimination against other Users

D. Third-Party Claims:

- Claims by third parties arising from your use of the Platform
- Claims by employees, contractors, or agents you engage in connection with services

12.2 Defense and Settlement

SabiWay reserves the right, at its own expense, to assume the exclusive defense and control of any matter subject to indemnification by you. You agree to cooperate with SabiWay's defense of such claims. You may not settle any claim that affects SabiWay without SabiWay's prior written consent.

12.3 Service Professional Additional Indemnification

If you are a Service Professional, you specifically agree to indemnify SabiWay for:

- Claims arising from your failure to maintain adequate insurance
- Claims that you are an employee of SabiWay rather than an independent contractor
- Claims arising from your failure to comply with licensing or regulatory requirements
- Claims by your employees, contractors, or subcontractors
- Workers' compensation claims
- Claims arising from your misclassification of workers
- Tax liabilities related to your earnings through the Platform

13. DISPUTE RESOLUTION

13.1 Informal Resolution

Before filing a formal claim, you agree to first contact SabiWay at info@sabiway.com to attempt to resolve the dispute informally. Please provide:

- Your name and contact information
- A description of the dispute
- The relief you are seeking

We will attempt to resolve the dispute within 30 days of receiving your notice.

13.2 Governing Law

These Terms and any disputes arising from or relating to the Platform shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria, without regard to its conflict of law provisions.

13.3 Arbitration Agreement

PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE A LAWSUIT IN COURT.

Except for disputes that qualify for small claims court or disputes relating to intellectual property rights, any dispute, claim, or controversy arising out of or relating to these Terms or the Platform (collectively, "Disputes") shall be resolved through binding arbitration rather than in court.

Arbitration Procedures:

- Disputes shall be resolved by arbitration administered by the Lagos Multi-Door Courthouse (LMDC) or another mutually agreed arbitration body
- The arbitration shall be conducted in accordance with the Arbitration and Mediation Act of Nigeria
- The arbitration shall take place in Lagos, Nigeria, or another mutually agreed location
- The arbitrator's decision shall be final and binding
- Judgment on the arbitration award may be entered in any court having jurisdiction

Exceptions to Arbitration:

The following disputes are not subject to arbitration:

- Disputes that may be brought in small claims court
- Disputes relating to intellectual property rights (copyright, trademark, patent, trade secret)
- Requests for injunctive relief to prevent irreparable harm

Class Action Waiver: YOU AND SABIWAY AGREE THAT DISPUTES WILL BE RESOLVED ON AN INDIVIDUAL BASIS ONLY, NOT AS A CLASS ACTION, CONSOLIDATED ACTION, OR REPRESENTATIVE ACTION. You and SabiWay expressly waive any right to bring or participate in a class action, consolidated action, or representative action.

Opt-Out Right: You have the right to opt out of this arbitration agreement by sending written notice to SabiWay at

legal@sabiway.com within 30 days of first accepting these Terms. Your notice must include your name, address, and a clear statement that you wish to opt out of the arbitration agreement. If you opt out, you and SabiWay agree that disputes will be resolved in court as described in Section 13.4 below.

13.4 Jurisdiction and Venue

If the arbitration agreement does not apply (either because you opted out or the dispute is excluded from arbitration), you agree that any legal action, suit, or proceeding arising out of or relating to these Terms or the Platform shall be brought exclusively in the courts located in Lagos State, Nigeria. You consent to the personal jurisdiction of such courts and waive any objection to the venue.

13.5 Time Limitation on Claims

You agree that regardless of any statute or law to the contrary, any claim or cause of action arising out of or related to your use of the Platform must be filed within one (1) year after such claim or cause of action arose, or be forever barred.

13.6 Customer-Service Professional Disputes

Disputes between Customers and Service Professionals regarding services, payments, or conduct should first be addressed directly between the parties through the Platform's messaging system.

If direct resolution is unsuccessful, either party may contact SabiWay customer support at info@sabiway.com for assistance. SabiWay may, at its sole discretion:

- Facilitate communication between the parties
- Provide non-binding recommendations
- Issue refunds or adjust payments
- Take action against a User's account

However, SabiWay is not obligated to resolve disputes between Users and does not act as an arbitrator or judge in such disputes.

14. TERM AND TERMINATION

14.1 Term

These Terms commence when you first access the Platform and continue until terminated by either you or SabiWay.

14.2 Termination by You

You may terminate your account at any time by:

- Sending a termination request to info@sabiway.com
- Using the account deletion feature in your Account Settings (if available)

Upon termination, you remain obligated to:

- Complete any outstanding Bookings

- Pay any outstanding fees or charges
- Comply with any provisions of these Terms that by their nature should survive termination

14.3 Termination by SabiWay

SabiWay may suspend or terminate your account immediately, with or without notice, for any reason, including but not limited to:

- Violation of these Terms
- Fraudulent, illegal, or abusive behavior
- Failure to pay fees or charges
- Providing false or misleading information
- Receipt of complaints from other Users
- Engagement in conduct that harms or could harm SabiWay, the Platform, or other Users
- Inactivity for an extended period (typically 2 years)
- At our sole discretion for any other reason

14.4 Effects of Termination

Upon termination of your account:

Immediate Effects:

- Your access to the Platform will be revoked
- Your profile will no longer be visible to other Users
- You will not be able to accept new Bookings (Service Professionals) or make new Bookings (Customers)

Outstanding Obligations:

- You remain responsible for completing any confirmed Bookings
- You must pay any outstanding fees or charges
- Service Professionals will receive payment for completed services (minus any amounts withheld for violations)

Content:

- Your Content may remain on the Platform, including reviews and ratings
- SabiWay may retain certain information as required by law or for legitimate business purposes
- You may request deletion of your personal information as described in our Privacy Policy

No Refunds:

- Termination does not entitle you to refunds of any fees paid
- SabiWay is not liable for any damages resulting from account suspension or termination

14.5 Survival

The following provisions survive termination of these Terms:

- Sections 7 (Payments and Fees), 8.2 (License to User Content), 10 (Intellectual Property), 11 (Disclaimers and Limitations of Liability), 12 (Indemnification), 13 (Dispute

Resolution), 14.4 (Effects of Termination), and any other provisions that by their nature should survive

15. PRIVACY AND DATA PROTECTION

15.1 Privacy Policy

Your privacy is important to us. Our collection, use, and disclosure of your personal information is governed by our Privacy Policy, which is incorporated into these Terms by reference.

By using the Platform, you consent to:

- The collection and use of your information as described in the Privacy Policy
- The transfer of your information to Nigeria and other countries where SabiWay operates
- The use of cookies and similar tracking technologies

15.2 Data You Provide

You are responsible for the accuracy of information you provide to SabiWay. You agree to keep your information current and accurate.

15.3 Communications

By creating an account, you consent to receive communications from SabiWay, including:

- Transactional messages (booking confirmations, payment receipts, etc.)
- Service-related announcements
- Customer support responses
- Platform updates and changes
- Marketing communications (you may opt out of these)

You may manage your communication preferences in your Account Settings or by following the unsubscribe instructions in emails.

15.4 Data Security

While we implement reasonable security measures to protect your information, no method of transmission or storage is 100% secure. You use the Platform at your own risk.

You are responsible for:

- Maintaining the confidentiality of your account credentials
- Any activity that occurs under your account
- Notifying us immediately of any unauthorized access

16. INSURANCE AND LIABILITY COVERAGE

16.1 Service Professional Insurance Requirements

Service Professionals are strongly encouraged to maintain adequate insurance coverage, including:

- General liability insurance

- Professional liability insurance (errors and omissions)
- Workers' compensation insurance (if employing others)
- Commercial auto insurance (if using vehicles for business)
- Any other insurance required by applicable law or industry standards

Important: SabiWay does not provide insurance coverage for Service Professionals. Service Professionals are solely responsible for obtaining and maintaining adequate insurance.

16.2 Customer Responsibility

Customers are responsible for:

- Verifying that Service Professionals have adequate insurance for the services being provided
- Understanding that SabiWay does not insure or guarantee services
- Maintaining their own homeowner's, renter's, or other applicable insurance

16.3 Claims and Damages

In the event of property damage, personal injury, or other losses:

Step 1: Document the incident with photos, written descriptions, and any other relevant evidence.

Step 2: Report the incident to SabiWay at info@sabiway.com within 48 hours.

Step 3: If the Service Professional has insurance, file a claim with their insurance provider.

Step 4: If applicable, file a claim with your own insurance provider.

SabiWay's Role: SabiWay may assist with communication and documentation but is not responsible for resolving insurance claims or compensating for damages. Any disputes regarding damages must be resolved between the parties involved (and their insurance providers), or through the dispute resolution process outlined in Section 13.

17. BACKGROUND CHECKS AND SAFETY

17.1 Background Check Process

SabiWay conducts background checks on Service Professionals as part of the verification process. These checks may include:

- Criminal history checks
- Identity verification
- License and certification verification
- Reference checks
- Credit checks (where applicable and permitted by law)

17.2 Limitations of Background Checks

Important Disclaimer: Background checks have limitations and do not guarantee safety, competence, or reliability. Background checks may not reveal:

- Recent criminal activity that has not yet been reported or processed
- Criminal activity in jurisdictions not covered by the check
- Civil judgments, complaints, or disputes
- Poor work quality or customer service issues
- Financial instability or business failures

17.3 Continuous Monitoring

SabiWay may conduct periodic re-checks of Service Professionals' backgrounds. However, we do not provide real-time or continuous monitoring.

17.4 User Safety Responsibilities

Users are responsible for their own safety. We recommend:

For Customers:

- Meet Service Professionals in well-lit, public areas when possible
- Ensure someone knows when and where services are being performed
- Trust your instincts and decline services if you feel uncomfortable
- Verify credentials and ask for references
- Review the Service Professional's ratings and reviews
- Report suspicious behavior immediately

For Service Professionals:

- Assess the safety of the work environment before accepting a Booking
- Decline Bookings if you feel unsafe
- Bring appropriate safety equipment
- Report threatening or inappropriate behavior immediately
- Meet Customers in the presence of others when possible

17.5 Reporting Safety Concerns

If you experience or witness any safety concerns, including:

- Threats of violence or actual violence
- Sexual harassment or assault
- Theft or property damage
- Impersonation or fraud
- Any behavior that makes you feel unsafe

Immediate Danger: Call local emergency services (police, fire, medical) immediately.

After the Incident: Report the incident to SabiWay at safety@sabiway.com or info@sabiway.com as soon as possible.

Include:

- Date, time, and location of the incident
- Names and contact information of parties involved
- Detailed description of what occurred
- Any photos, videos, or other evidence
- Whether you reported it to law enforcement

SabiWay takes safety reports seriously and will investigate promptly. Depending on the circumstances, we may:

- Suspend or terminate the offending User's account
- Contact law enforcement
- Cooperate with legal investigations
- Implement additional safety measures

18. MODIFICATIONS TO TERMS

18.1 Right to Modify

SabiWay reserves the right to modify these Terms at any time, at our sole discretion. When we make changes, we will:

- Update the "Last Updated" date at the top of these Terms
- Post the revised Terms on the Platform
- Notify you of material changes through email, Platform notification, or other reasonable means

18.2 Your Acceptance of Changes

Material Changes: For material changes that significantly affect your rights or obligations, we will provide at least 30 days' notice before the changes take effect. You may choose to:

- Accept the changes by continuing to use the Platform after the effective date
- Reject the changes by terminating your account before the effective date

Non-Material Changes: For minor changes (such as clarifications, formatting, or non-substantive updates), your continued use of the Platform after the changes are posted constitutes your acceptance of the revised Terms.

18.3 Checking for Updates

It is your responsibility to review these Terms periodically for changes. Your continued use of the Platform following the posting of changes constitutes your acceptance of those changes.

If you do not agree to the modified Terms, you must stop using the Platform and terminate your account.

19. GENERAL PROVISIONS

19.1 Entire Agreement

These Terms, together with our Privacy Policy and any other policies or guidelines posted on the Platform, constitute the entire agreement between you and SabiWay regarding your use of the Platform and supersede all prior agreements, understandings, and representations, whether written or oral.

19.2 Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it valid and enforceable, or if such modification is not

possible, the provision shall be severed from these Terms. The remaining provisions shall continue in full force and effect.

19.3 Waiver

No waiver of any provision of these Terms shall be deemed a further or continuing waiver of such provision or any other provision. SabiWay's failure to enforce any right or provision of these Terms shall not constitute a waiver of such right or provision.

19.4 Assignment

You may not assign, transfer, or delegate these Terms or your rights and obligations hereunder without SabiWay's prior written consent. SabiWay may assign these Terms or any rights hereunder without your consent, including in connection with a merger, acquisition, reorganization, or sale of assets.

19.5 Force Majeure

SabiWay shall not be liable for any delay or failure to perform resulting from causes outside its reasonable control, including but not limited to:

- Acts of God, natural disasters, or extreme weather
- War, terrorism, civil unrest, or government action
- Labor disputes or strikes
- Epidemics or pandemics
- Internet or telecommunications failures

- Cyber attacks or data breaches
- Failure of third-party service providers

19.6 No Third-Party Beneficiaries

These Terms are for the benefit of, and may be enforced only by, you and SabiWay. These Terms are not intended to confer any right or benefit on any third party.

19.7 Relationship of the Parties

Nothing in these Terms creates a partnership, joint venture, employment, agency, or franchise relationship between you and SabiWay. You have no authority to bind SabiWay or make commitments on SabiWay's behalf.

19.8 Language

These Terms are drafted in English. If these Terms are translated into another language, the English version shall prevail in case of any conflict or inconsistency.

19.9 Headings

The section headings in these Terms are for convenience only and have no legal or contractual effect.

19.10 Notices

To You: SabiWay may provide notices to you:

- By email to the address associated with your account
- By posting on the Platform

- Through push notifications or SMS
- By mail to the address on file

You consent to receive notices electronically, and electronic notices satisfy any legal requirement that notices be in writing.

To SabiWay: You may provide notice to SabiWay at:

Email: info@sabiway.com

Mailing Address:

SabiWay LTD

75, VILLAGE DRIVE, PRESTON

UNITED KINGDOM

Notices to SabiWay must be in writing and will be deemed given when received by SabiWay.

19.11 Export Controls

The Platform may be subject to export control and economic sanctions laws of UK, Nigeria, the United States, and other jurisdictions. You represent and warrant that:

- You are not located in, under the control of, or a national or resident of any country subject to comprehensive economic sanctions
- You are not listed on any government list of prohibited or restricted parties

- You will comply with all applicable export control and sanctions laws

19.12 Government Users

If you are a government entity, your use of the Platform is subject to these Terms except to the extent that any provision is inconsistent with applicable law or regulations governing your entity.

19.13 Electronic Signatures

Your use of the Platform and acceptance of these Terms constitutes your electronic signature and your agreement to be bound by these Terms. You waive any rights or requirements under any laws or regulations in any jurisdiction that require an original (non-electronic) signature or delivery or retention of non-electronic records.

20. SPECIFIC TERMS FOR SERVICE CATEGORIES

20.1 Licensed Professionals

For services that require professional licenses (e.g., electricians, plumbers), Service Professionals must:

- Maintain all required licenses in good standing
- Comply with all applicable codes, standards, and regulations
- Carry appropriate professional liability insurance
- Perform work in accordance with industry best practices

- Obtain necessary permits for work performed
- Provide warranty or guarantee as required by law

20.2 Health and Beauty Services

For services such as barbering, cosmetology, or other personal care services, Service Professionals must:

- Maintain all required health and sanitation permits
- Use clean, sanitized tools and equipment
- Follow infection control protocols
- Disclose any health conditions that may affect service delivery
- Respect client privacy and modesty
- Maintain professional boundaries at all times

20.3 In-Home Services

For services performed at a Customer's residence, additional terms apply:

Service Professionals Must:

- Respect the Customer's property and privacy
- Work only in areas agreed upon with the Customer
- Clean up work areas after service completion
- Protect floors, furniture, and other property from damage
- Not bring unauthorized persons to the service location
- Not consume alcohol or drugs before or during service
- Leave immediately if asked by the Customer

Customers Must:

- Provide a safe working environment
- Secure pets that may interfere with work
- Remove fragile or valuable items from work areas
- Disclose any hazards (mold, asbestos, lead paint, etc.)
- Be present or arrange for an adult representative to be present
- Not interfere with the Service Professional's work

20.4 Emergency Services

SabiWay is not designed for emergency situations. For urgent issues requiring immediate attention (e.g., burst pipes, electrical fires, gas leaks):

- Contact emergency services (police, fire, ambulance) first
- Contact specialized emergency service providers
- Do not rely on the Platform for time-sensitive emergencies

While some Service Professionals may offer emergency services, SabiWay does not guarantee availability or response times.

21. FEEDBACK AND SUGGESTIONS

21.1 Voluntary Submissions

We welcome your feedback, suggestions, comments, and ideas for improving the Platform ("Feedback"). By submitting Feedback, you agree that:

- Your Feedback is voluntary and unsolicited
- SabiWay is free to use, disclose, reproduce, modify, and distribute the Feedback without compensation or attribution to you
- You grant SabiWay a perpetual, irrevocable, worldwide, royalty-free license to use the Feedback for any purpose
- Your Feedback does not contain confidential or proprietary information of you or third parties

21.2 No Obligation

SabiWay is under no obligation to:

- Review or consider your Feedback
- Implement your suggestions
- Keep your Feedback confidential
- Compensate you for Feedback

22. CONTACT INFORMATION

If you have any questions, concerns, or complaints about these Terms or the Platform, please contact us:

General Inquiries:

Email: info@sabiway.com

Phone: (123) 456-789

Customer Support:

Email: support@sabiway.com

Hours: Monday - Friday, 8:00 AM - 6:00 PM WAT

Legal Matters:

Email: info@sabiway.com

Safety Concerns:

Email: info@sabiway.com

Data Protection:

Email: info@sabiway.com

(Data Protection Officer)

Mailing Address:

SabiWay LTD

75, VILLAGE DRIVE, PRESTON,

PR2 6JH

We aim to respond to all inquiries within 2-3 business days.

23. ACKNOWLEDGMENT AND ACCEPTANCE

BY CLICKING "I AGREE," CREATING AN ACCOUNT, OR USING THE PLATFORM IN ANY WAY, YOU ACKNOWLEDGE THAT:

1. You have read and understood these Terms of Use in their entirety

2. You agree to be bound by these Terms and our Privacy Policy
3. You are at least 18 years of age or the age of majority in your jurisdiction
4. You have the legal capacity to enter into a binding agreement
5. If registering on behalf of a business, you have the authority to bind that business to these Terms
6. You understand that SabiWay is a platform that connects Customers with independent Service Professionals
7. You understand that SabiWay does not provide services, employ Service Professionals, or guarantee service quality
8. You accept the risks associated with using the Platform and engaging with other Users
9. You have reviewed the dispute resolution and arbitration provisions in Section 13
10. You consent to receive electronic communications from SabiWay

IF YOU DO NOT AGREE TO THESE TERMS, DO NOT USE THE PLATFORM.